

Art, Algorithms, and Ownership: Navigating Artist Rights and AI Data Mining Across EU and US Frameworks

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Abstract

The rapid evolution and widespread adoption of generative AI have fundamentally disrupted traditional paradigms of creative expression, copyright law, and intellectual property (IP) enforcements. As generative models rely heavily on vast datasets of human-created art for training, artists face unprecedented challenges regarding the unauthorised exploitation of their visual styles, moral rights, and economic livelihoods. Concurrently, the determination of an appropriate legal status of works generated by AI-assisted and AI-generated outputs is a point of contention for courts worldwide.

This tutorial provides a comprehensive exploration of artists' IP rights at the intersection of legal theory, judicial precedent, and AI policy. The tutorial is structured into four core sections:

1. **Foundations of Artists' IP Rights and Comparative Frameworks:** We begin with an overview of the fundamental IP protections available to artists, including copyright, moral rights, and economic rights. We then contrast the statutory and philosophical approaches of the EU (e.g. the EU Copyright in the Digital Single Market Directive, the EU AI Act and European Court of Justice Jurisprudence) with those of the United States (e.g. common law copyright protections, the Fair Use, and Transformative Use doctrines).
2. **AI in the Creative Process and Judicial Review:** We examine how courts across jurisdictions evaluate domain, authorship and ownership of artistic works. We then consider how the same tests may be utilised and applied where the output is AI-assisted or AI-generated. This section focuses on the emerging judicial standards for human authorship thresholds, copyrightability, and the legal treatment of hybrid Human-AI outputs.
3. **Training Data, Text and Data Mining (TDM), and implications for Artists:** We explore the legality of using copyrighted artistic works in model training datasets. We evaluate the key legal battlegrounds surrounding TDM exceptions in the EU versus Fair Use defences in the US, examining the broader economic, moral, and systemic implications for visual artists.
4. **Interactive Policy Lab and TDM Governance Brainstorm:** The final section engages participants in a collaborative brainstorming workshop. Attendees will evaluate potential legal, technological, and institutional mechanisms to manage TDM. Together, we will formulate actionable policy recommendations and governance solutions, such as opt-in frameworks, metadata and data provenance standards, and equitable remuneration schemes, tailored for artists, developers, and policymakers.

Keywords:

IP Law, Text and Data Mining (TDM), EU AI Act, Copyright DSM Directive, AI Governance & Policy

Motivation for the tutorial:

Art and Artists have historically served as the catalyst and conscience of cultural revolutions, defining eras and giving voice and dimension to human experiences. Generative-AI, however,

presents an existential inflection point for creative labour. As someone directly grounded in the visual arts community through my husband's practice, I witness daily how the rapid deployment of these technologies impacts independent creators. The current narrative around AI often defaults to technological fatalism, a false presumption that artists must simply accept uncompensated exploitation of their work. The reality is that legal rights do exist, but they remain underutilised because they are obscured by complex technology, weak enforcement and evolving doctrines.

Artists cannot, and should not be expected to confront this systemic challenge alone. While generative models rely entirely on human creative output to function, the legal and ethical misgivings of training data ingestion are frequently minimised behind computational abstractions. Legal scholars, computer scientists, and civil society advocates have an active responsibility to step into this breach. We must act as a bridge between high-level policy and grassroots creative practice, demystifying how algorithms interact with intellectual property law so that artists can exercise their rights effectively and strategically.

This tutorial is uniquely urgent for JURIX 2026 as it provides a framework for discussions on critical regulatory implementation, and a review of decisive judicial precedents with a view of developing informed policies for governance of AI. This tutorial is driven by the conviction that academic research in AI and law must deliver practical value to civil society. By bringing together comparative legal analysis, technical realities, and collaborative policy design at JURIX 2026, this session aims to move beyond passive critique towards active governance. Supporting the artist community in this moment is essential to ensuring that technology serves human creativity rather than subsuming it.

Proposed Format for Tutorial:

Spotlight (90 minutes)

Scheduling: a detailed, point-form outline of the tutorial:

Section 1: Foundations of Artists' IP Rights and Comparative Frameworks:

[20 minutes = 15 minutes Presentation + 5 minutes Q&A]

- 1) Overview of the Berne Convention and artist IP
 - a) Copyright protection
 - b) Moral Rights
- 2) Overview of EU law:
 - a) Case law: Case C-05/08 – *Infopaq International v. Danske Dagblades Forening* (2009) ECLI:EU:C:2009:465 (*Infopaq*), Case C-310/17 – *Levola Hengelo* (2018) ECLI:EU:C:2018:899, Case C-469/17 – *Funke Medien NRW GmbH v. Bundesrepublik Deutschland* (2019) ECLI:EU:C:2019:623 (*Funke Medien*), Case C-683/17 – *Cofemel - Sociedade de Vestuário SA v. G-Star Raw CV* (2019) ECLI:EU:C:2019:721 (*Cofemel*), and Case C-833/18 – *SI and Brompton Bicycle Ltd v. Chedech / Get2Get* (2020) ECLI:EU:C:2020:461 (*Brompton Bicycle*).
 - b) Directive (EU) 2019/790 on Copyright and Related Rights in the Digital single Market (DSMD).
 - c) Regulation (EU) 2024/1689 of the European Parliament and of the Council of 13 June 2024 laying down harmonised rules on artificial intelligence and amending Regulations (EC) No 300/2008, (EU) No 167/2013, (EU) No 168/2013, (EU) 2018/858, (EU) 2018/1139 and

(EU) 2019/2144 and Directives 2014/90/EU, (EU) 2016/797 and (EU) 2020/1828 (Artificial Intelligence Act).

- 3) Overview of US approach:
 - a) Case law: *New York Times Company v. Microsoft et al.* (4 April 2025) 1:23-cv-11195 (SHS), *Andy Warhol Foundation for the Visual Arts Inc. v. Goldsmiths et al.* (18 May 2023) SC OP 21-869.
 - b) Fair Use Doctrine
 - c) Transformative Use Doctrine

Section 2: AI in the Creative Process and Judicial Review:

[20 minutes = 15 minutes Presentation + 5 minutes Q&A]

- 1) Four-step criteria for Copyright protection:
 - a) Domain Test
 - b) Human Authorship Requirement
 - c) Originality
 - d) Expression.
- 2) Applying the four-step criteria for AI-assisted/AI-generated Outputs:
 - a) Qualified Person Test: *Nova Productions Ltd v Mazooma Games Ltd* [2007] EWCA Civ 219, [2006] E.M.L.R. 14 (UK, Court of Appeal (Civil Division)), *Acohs Pty Ltd v Ucorp Pty Ltd* [2012] FCAFC 16 (Australia, Full Federal Court of Appeal, 2 March 2012).
 - b) Originality: Case C-145/10 – *Painer* (2011) ECLI:EU:2013:138, Employer-Employee relationship.

Section 3: Training Data, Text and Data Mining (TDM), and implications for Artists:

[20 minutes = 15 minutes Presentation + 5 minutes Q&A]

- 1) Model Training
 - a) Creative commons
 - b) Web crawling/scraping
 - c) Sui Generis protections
- 2) TDM exception
 - a) Misuses of the exception: LAION group, LLaMA models.

Section 4: Interactive Policy Lab and TDM Governance Brainstorm:

[30 minutes]

- 1) Participant Brainstorming: Guided group activity evaluating TDM management strategies.
- 2) Depending on the number of attendees: the group will be divided into quads/ groups of four. Each quad will then be assigned a target audience for whom they will be developing the policy recommendation, e.g. Artists, AI developers, regulators, and policymakers.
- 3) Key focus on counter measures such as opt-in systems as opposed to the opt-out mechanisms in place, data provenance standards, equitable remuneration schemes.
 - i) Group Reporting: Presentation of key policy recommendations from each quad.
 - ii) Group Consensus: Consolidation and consensus on key policy recommendations.

The following have been envisioned to be the key learning outcomes for the tutorial:

1. Analyse the operational difference between EU and US regulatory approaches
2. Evaluate judicial tests for original human authorship in AI-assisted works.

3. Co-design scalable policy and technical mechanisms to govern training data collection while protecting creator's economic and moral rights.

Target Audience:

This tutorial is designed for artists, researchers, legal scholars, practitioners, and policy analysts attending JURIX 2026, this tutorial bridges theoretical IP doctrine with practical policy design, equipping participants to navigate their rights, and shape the future of AI governance in the creative industries.

List of readings

Primary Sources

Legislation

1. Directive (EU) 2019/790 on Copyright and Related Rights in the Digital single Market (DSMD) PE/51/2019/REV/1 *OJ L 130*.
2. Regulation (EU) 2024/1689 of the European Parliament and of the Council of 13 June 2024 laying down harmonised rules on artificial intelligence and amending Regulations (EC) No 300/2008, (EU) No 167/2013, (EU) No 168/2013, (EU) 2018/858, (EU) 2018/1139 and (EU) 2019/2144 and Directives 2014/90/EU, (EU) 2016/797 and (EU) 2020/1828 (Artificial Intelligence Act) PE/24/2024/REV/1 *OJ L, 2024/1689*.

Case Law

1. Case C-05/08 – *Infopaq International v. Danske Dagblades Forening* (2009) ECLI:EU:C:2009:465 (*Infopaq*)
2. Case C-310/17 – *Levola Hengelo* (2018) ECLI:EU:C:2018:899
3. Case C-469/17 – *Funke Medien NRW GmbH v. Bundesrepublik Deutschland* (2019) ECLI:EU:C:2019:623 (*Funke Medien*)
4. Case C-683/17 – *Cofemel - Sociedade de Vestuário SA v. G-Star Raw CV* (2019) ECLI:EU:C:2019:721 (*Cofemel*)
5. Case C-833/18 – *SI and Brompton Bicycle Ltd v. Chedech / Get2Get* (2020) ECLI:EU:C:2020:461 (*Brompton Bicycle*).
6. Case C-145/10 – *Painer* (2011) ECLI:EU:2013:138
7. New York Times Company v. Microsoft et al. (4 April 2025) 1:23-cv-11195 (SHS)
8. Andy Warhol Foundation for the Visual Arts Inc, v. Goldsmiths et al. (18 May 2023) SC OP 21-869
9. Nova Productions Ltd v Mazooma Games Ltd [2007] EWCA Civ 219, [2006] E.M.L.R. 14 (UK, Court of Appeal (Civil Division))
10. Acohs Pty Ltd v Ucorp Pty Ltd [2012] FCAFC 16 (Australia, Full Federal Court of Appeal, 2 March 2012).

Secondary Sources

ARTISTS, U. 2025. *Is This What We Want?* [Online]. Available: <https://www.isthiswhatwewant.com> [Accessed].

BARR, A. 2023. OpenAI just admitted it has a bot that crawls the web to collect AI training data. If you don't block GPTbot, that's self-sabotage. *Business Insider*.

- BOOTH, R. 2024. UK arts and media reject plan to let AI firms use copyrighted material. 2024-12-19.
- GERVAIS, D. J. 2022. AI Derivatives: the Application to the Derivative Work Right to Literary and Artistic Productions of AI Machines. *Seton Hall Law Review*, 53.
- HACKER, P. 2021. A legal framework for AI training data—from first principles to the Artificial Intelligence Act. *Law, Innovation and Technology*, 13, 257-301.
- HINE, E., NOVELLI, C., TADDEO, M. & FLORIDI, L. 2024. Supporting Trustworthy AI Through Machine Unlearning. *Science and Engineering Ethics*, 30, 43.
- HRISTOV, K. 2017. Artificial Intelligence and the Copyright Dilemma. *IDEA: The IP Law Review*, 57.
- HUGENHOLTZ, P. B. & QUINTAIS, J. P. 2021. Copyright and Artificial Creation: Does EU Copyright Law Protect AI-Assisted Output? *IIC - International Review of Intellectual Property and Competition Law*, 52, 1190-1216.
- IHALAINEN, J. 2018. Computer creativity: artificial intelligence and copyright. *Journal of Intellectual Property Law & Practice*, 13, 724-728.
- KÄSTLE, V. M. & WOLFENSTÄTTER, T. 2023. Getty Images v. Stability AI: Copyright Challenges Related to Generative AI (Part 1). Available from: <https://www.dajv.de/kuenstliche-intelligenz/getty-images-v-stability-ai-urheberrechtliche-herausforderungen-im-zusammenhang-mit-generativer-ki/>
- LAVALLÉE, E. 2017. Intellectual Property and Artificial Intelligence. Available from: <https://www.lavery.ca/en/publications/our-publications/3037-intellectual-property-and-artificial-intelligence.html> [Accessed 24 March 2025].
- MARCUS, G. & SOUTHEN, R. 2024. Generative AI Has a Visual Plagiarism Problem Experiments with Midjourney and DALL-E 3 show a copyright minefield. Available from: <https://spectrum.ieee.org/midjourney-copyright>
- NOVELLI, C., CASOLARI, F., HACKER, P., SPEDICATO, G. & FLORIDI, L. 2024. Generative AI in EU Law: Liability, Privacy, Intellectual Property, and Cybersecurity. *ArXiv*, abs/2401.07348.
- POLAND, C. M. 2023. Generative AI and US Intellectual Property Law. *ArXiv*, abs/2311.16023.
- RAMALHO, A. Q. R. N. 2019. Originality redux: an analysis of the originality requirement in AI-generated works. *AIDA*, 2-18.
- SAMUELSON, P. 2024. How to Think about Remedies in the Generative AI Copyright Cases. *Commun. ACM*, 67, 27–30.
- SARTOR, G., LAGIOA, F. & CONTISSA, G. 2018. The Use of Copyrighted Works by AI Systems: Art Works in the Data Mill.
- VARYTIMIDOU, C. 2023. The New A(I)rt Movement and Its Copyright Protection: Immoral or E-Moral? *GRUR International*, 72, 357-363.
- ZHUK, A. 2024. Navigating the legal landscape of AI copyright: a comparative analysis of EU, US, and Chinese approaches. *AI and Ethics*, 4, 1299-1306.